

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
BRIAN ECHEVARRIA,

Petitioner,

AFFIRMATION

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE *Department,*
DETECTIVE LEVA GEVARGIZ OF NARCB BX, SHIELD
615, UNDERCOVER POLICE OFFICER #348 AND
NEW YORK CITY POLICE OFFICERS JOHN DOE,Respondent.
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JASON A. STEINBERGER, ESQ., an attorney duly licensed to practice law before the Courts of the State of New York hereby affirms the following to be true under penalty of perjury that:

1. I am the attorney for Plaintiff BRIAN ECHEVARRIA and as such I am fully familiar with the facts and circumstances surrounding the above captioned action. The basis for my knowledge is derived from those files maintained by this office in connection with same.
2. I am respectfully submitting the instant Affirmation in Support of the instant Petition pursuant to General Municipal Law § 50-e(5) therein granting leave to Petitioner to serve a Late Notice of Claim on the Respondent, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE LEVA GEVARGIZ, SHIELD 615 OF NARCB BX, UNDERCOVER POLICE OFFICER # 348 AND NEW YORK CITY PLICE OFFICERS JOHN DOE, which will include causes of action for False Arrest, False Imprisonment and Malicious Prosecution.

3. I make this Petition upon information and belief. The sources of my information

are a review of the Criminal Court Complaint, Certificate of Disposition and speaking with petitioner.

4. On or about March 2, 2019, Detective Leva Gevargiz, Undercover Police Officer # 348 and New York City Police Officers John Doe assisted in the arrested Petitioner for Criminal Sale of Marijuana in the 4th Degree and related offenses despite the fact that Petitioner never committed a crime. (EXHIBIT "B")

5. On or about June 12, 2019, the case against Petitioner was dismissed by Bronx County District Attorney. (Exhibit "C")

6. On or about May 15, 2019 the Petitioner filed a Notice of Claim with the City of New York and New York City Police Department alleging causes of action for False Arrest, False Imprisonment, Violation of Civil Rights under §1983, 42 USC and malicious prosecution.

7. It is well settled that the Court may, in its discretion, extend the time to serve a notice of claim. See, Matter of Lodati v. City of New York 303 A.D.2d 406 (2nd Dept. 2003); Matter of Allen, 268 A.D.2d. 520 (2nd Dept. 2000). In determining whether to grant an application for leave to file a late notice claim, "the key factors which the Supreme Court must consider are whether the movant demonstrated a reasonable excuse for the failure to timely file a notice of claim, whether the municipality acquired actual notice of the essential facts of the claim within 90 days after the claim arose or within a reasonable time thereafter, and whether the delay would substantially prejudice the municipality in its defense." Burgess v. County of Suffolk, 56 A.D.3d 769 (2nd Dept 2008). Neither the presence nor the absence of any one factor

is determinative. See, Matter of Dell'Italia v. Long Island Corp., 31 A.D.3d 758 (2nd Dept. 2006). In accord with the General Municipal Law, the Court must give particular consideration to whether municipality acquired actual notice of the essential facts of the claim within 90 days after the claims arose *or within a reasonable time thereafter*. See, Munro v. Ossining Union Free School District, 55 A.D.3d 697 (2nd Dept., 2008).

8. In review of the proposed Notice of Claim, please find attached a copy of the Notice of Claim served on June 12, 2019.

9. It is well accepted law that for claims of false arrest, false imprisonment, malicious prosecution, negligent hiring, negligent training and negligent supervision where the police department conducts an extensive investigation in which the District Attorney's office joins and participates, knowledge of the essential facts constituting the claims can be imputed to the City of New York within the statutory period. Hence the City cannot claim prejudice by any delay. Grullon v. City of New York, 222 A.D.2d 257, 635 N.Y.S.2d 24 (1st Dept., 1995); Nunez v. City of New York, 307 A.D.2d 218, 762 N.Y.S.2d 384 (1st Dept., 2003); Phillipe v. City of New York, 8 Misc.3d 1016A, 803 N.Y.S.2d 20 (Sup. Ct., NY Co., Ling-Cohan, J., 2005).

10. Accordingly, Respondent had actual knowledge of the incident giving rise to the instant proceeding.

11. In the present case, the City of New York, its agents, servants and employees, arrested, imprisoned and prosecuted Petitioners. Hence the Notice of Claim is certainly timely as to those claims under the General Municipal Law

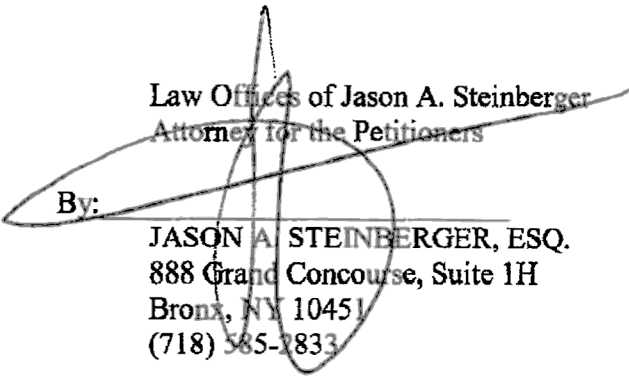
12. As the First Department in Grullon v. City of New York, supra, stated in cases where the delay "...was not a lengthy one" and where the City of New York by the police department and District Attorney's office were actively involved in the investigation of the criminal charges on which the civil claims are based, there is simply no prejudice and no valid reason to deny Claimant the right to timely file a Notice of Claim on all the stated causes of action.

13. That based upon the foregoing, it is respectfully requested that the Petitioners be granted leave to file the proposed late notice of claim annexed hereto.

14. That no prior request for relief has been made.

Dated: Bronx, New York
June 16, 2019

Law Offices of Jason A. Steinberger
Attorney for the Petitioners

By: 

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